



File No.: EXP202312570

RESOLUTION OF RIGHTS PROCEDURE

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: A.A.A. (hereinafter, the claimant) exercised the right of Access against ATTITUDE & ABILITY, S.L. (hereinafter, the respondent) without their request receiving the legally established response. The claimant states that, after suffering a traffic accident near a gas station of the respondent on March 16, 2023, they became aware of the possibility that the incident was recorded by the surveillance system of the respondent's facilities, and therefore contacted the person in charge of the gas station, who informed them that images from the system would only be provided by court order. On March 28, 2023, the claimant submitted a request for access to the images to the respondent, and was contacted via email on April 18, 2023, by the person in charge of the respondent, informing them of the opening of a report to process their request and the incident generated, without having received a response after four months from their request.

The claimant provides a copy of the access request dated March 28, 2023, stamped by the respondent, and a Complaint Form in which they request a copy of the images from the security system.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the respondent for them to analyze it and inform this Agency within one month of the actions taken to comply with the requirements established in data protection regulations.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the satisfaction of the claimant's requests. Consequently, on October 21, 2023, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data agreed to admit the complaint for processing.

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The aforementioned agreement granted the respondent a hearing period, so that within ten working days they could present any allegations they deemed appropriate.

The respondent has not submitted any allegations.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for the Protection of Data is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for the Protection of Data shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for the Protection of Data is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and the promotion of awareness among data controllers and processors regarding their obligations, as well as addressing complaints submitted by a data subject and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

In accordance with this regulation, following the procedure provided for in Article 65.4 of the LOPDGDD, prior to the admission of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, it was forwarded to the respondent for them to analyze it, respond to this Agency within one month, and demonstrate that they had provided the claimant with the appropriate response.

The result of this transfer did not allow for the satisfaction of the claimant's requests. Consequently, on October 21, 2023, for the purposes

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As provided in Articles 64.1 and 65 of the LOPDGDD, the complaint submitted was admitted for processing. This admission for processing determines the opening of the present procedure regarding the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated by Article 64.1 of the LOPDGDD, which states:

“When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it will be initiated by an admission agreement, which will be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure will be six months from the date on which the agreement of admission for processing was notified to the complainant. After this period, the interested party may consider their complaint accepted.”

Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers for the purpose of correcting any infringement of the GDPR, including “ordering the data controller or processor to attend to the requests for the exercise of the rights of the data subject under this Regulation.”

III

Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, the provisions expressed in Recitals 59 and following of the GDPR are taken into account. In accordance with these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which will be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless they can demonstrate that they are unable to identify the data subject, and to express their reasons if they do not intend to comply with such request. The burden of proof regarding compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication addressed to the data subject regarding their request must be expressed in a

concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

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IV

Right of Access

In accordance with Article 15 of the GDPR and Article 13 of the LOPDGDD, “the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data.”

Regarding the right of access to personal data, according to Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the data controller may request the affected party to specify the “data or processing activities to which the request refers.” The right will be considered granted if the data controller provides remote access to the data, with the request being deemed attended to (although the data subject may request information regarding the aspects provided in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a six-month period, unless there is a legitimate reason for doing so.

On the other hand, the request will be considered excessive when the affected party chooses a means other than that offered which incurs a disproportionate cost, which must be borne by the affected party. Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the information available about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decisions, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed shall not adversely affect the rights and freedoms of others, meaning that the right of access will be granted in such a way that it does not affect third-party data.

V

Conclusion

During the processing of this procedure, the entity being complained against has responded to this Agency, but does not demonstrate having attended to the request made by the complainant, sending the required response to their request.

Before the admission for processing due to the lack of attention to the right, the entity being complained against sends a response to this Agency to justify the denial of the requested right.

This is:

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“...On 28/03/2023, Mr. A.A.A. contacted the person in charge of the service station (B.B.B.) and was given a verbal response indicating that we could not provide the images as they contained other individuals unrelated to the company, and due to data protection laws, we were unable to deliver them. - Both insurances, that of Mr. A.A.A. and that of Attitude & Ability SL, are the ones that have managed the incident, so we provided our insurer with said images so that, if they deemed it appropriate, they could provide them to Mr. A.A.A.'s insurer...”

Thus, it cannot be accepted that the response that should be given can be expressed merely as part of

an administrative procedure, such as the claim before the Agency for not properly addressing the request in question.

The responding party denies access to the recordings requested by the claimant, alleging that third parties appear in them. In this regard, it should be noted that there are several modalities in these cases for the right to be addressed without harming the rights of others. From pixelating the faces of third parties to the modality of exhibition. What is not acceptable in this case is that after the admission of the claim for not adequately addressing the right, the responding party does not respond either to the claimant or to this Agency.

The aforementioned rules do not allow the request to be overlooked as if it had not been made, leaving it without the response that those responsible are obliged to issue, even in the event that there are no data in the files or even in those cases where it does not meet the required criteria, in which case the recipient of said request is also obliged to require the correction of the observed deficiencies or, if applicable, to deny the request with justification indicating the reasons why the right in question cannot be considered.

Therefore, the request made obliges the responsible party to provide an express response in all cases, using any means that justifies the receipt of the response.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ACCEPT the claim made by A.A.A. considering that the provisions of Article 15 of the GDPR have been infringed and to urge ATTITUDE & ABILITY, S.L. with NIF B40573834, to send to the claimant a certification addressing the requested right or denying it with justification indicating the reasons why it is not appropriate to address the request, in accordance with the provisions of this resolution, within ten working days following the notification of this resolution. The actions taken as a consequence of this Resolution must be communicated to this Agency within the same period.

Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to A.A.A. and to ATTITUDE & ABILITY, S.L.

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In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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